

Betty Lyons - Understanding the Doctrine of Christian Discovery

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SPEAKERS

Betty Lyons, Tanner Randall

Tanner Randall 00:03

We acknowledge with respect the Onondaga Nation, Fire Keepers of the Haudenosaunee, the Indigenous people on whose land Syracuse University now stands. May the information you glean from this podcast motivate you to uphold Indigenous values, protect Mother Earth, and honor Indigenous treaties. Today, I'll be speaking with Betty Lyons about the origins of the doctrine of discovery. It's a rather covert principle within religion and even the American government. We discuss things related to how it's implemented, what Indigenous peoples are doing to revoke a lot of its principles, and what we can look towards as a goal for our society. Welcome to the doctrine of Christian discovery. I'm Tanner Randall, your host from Good Faith Media. We're producing this podcast at the Religious Origins of white supremacy conference in December of 2023 at Syracuse University in New York; this year is particularly special because it's the 100th anniversary of Johnson V. McIntosh, the Supreme Court proceeding that installed the framework of the doctrine of discovery within American government. We will be talking about the different ramifications of the doctrine of discovery and how it led to Indigenous values and land being stolen, as well as white supremacy and the general idea of revitalized Indigenous culture. The doctrine of discovery is a document created over 500 years ago; you may be asking yourself, why are we talking about the doctrine of discovery? And even with the United States court decision that instilled it in the American government? That was over 100 years ago. So why is it important? Today, we see that Indigenous societies still suffer from the land grabs of the past and the installation of constitutional frameworks within their government. So, we should look towards a future where we can combat the doctrine of discovery by reclaiming some of our Indigenous values. Maybe that means getting land back, maybe that means putting traditional practices within tribal frameworks. But Betty and I tried to tackle what future we can look towards. We would like to thank our sponsors who made this podcast possible. Many thanks to the Henry Luce Foundation, Syracuse University, the Indigenous Values Initiative, the American Indian Law Alliance, the American Indian community house, the good faith media tenets era, and towards our common public life. We appreciate your support. I'm Tanner Randall with Good Faith Media. Our guests on today's episode is Betty Lyons. Betty is of the

Onondaga Nation and the president of the American Indian Law Alliance. I'm here with Betty Lyons for the Doctrine of Christian Discovery podcast. Hi, Betty, welcome.

Betty Lyons 03:22

Thank you. Thank you so much for having me, just

Tanner Randall 03:25

to start real quick. People may not know what the Doctrine of Christian Discovery is. It's an extremely influential document. But again, it's not well known. So, can you explain in rather rudimentary terms or briefly what the doctrine of Christian discovery is?

Betty Lyons 03:43

Yes, the Doctrine of Discovery is a papal bull, a series of Papal bulls that were written in the 15th century. And basically, what it said was that if these Christian explorers were to go to lands that were inhabited by non-Christians, then those lands could be taken over. So the term terra nullius, you know, is used in that document. And if, if the habitants could not be converted to Christianity, then they could be enslaved, killed, or captured all of those things. And so basically, it started the land law in the United States, you know, Macintosh Johnson versus McIntosh back in 1823. And that was the basis of all Indian land law in the United States, but it also had the same oppression, you know, contributed to the same issues that we're facing here in other countries in Canada, England, not England, but Canada, New Zealand, Australia, Africa, Central and South America.

Tanner Randall 04:54

You mentioned Johnson V McIntosh. And I think that one of the less obvious facts about the Doctrine of Discovery is there is an implementation of its principles in the United States government. And it's very unique because the United States is fundamentally a country based on a separation of church and state. So could you give an example of kind of where we see the Doctrine of Discovery in modern day and maybe a more subtle area? Because in the 15th century, it was violent, obvious and implemented holistically. But now, it seems to be a little bit more covert?

Betty Lyons 05:39

Yes. I also would like to say that Justice Marshall in the in the original decision, Justice Marshall had influence and really, he should have recused himself because those decisions, affected his case, his own personal, his own personal land, grabbing, if you will. And so yes, we've seen it recently as 2014 2011. In Canada, in the United States, it was 2005, the Oneida versus Cheryl, decision that came down. And it has crept into so many, you know, around the world, it is it has been used as precedent, right? And so how do you try to unravel that? What are the threads that you can grab to try to unravel something that has become so institutionalized, and inner woven in the fabric of the justice system here in the United States?

Tanner Randall 06:42

So when it is so ingrained into our being, I think, sometimes once you study the Doctrine of Discovery, it seems ever present? So what would it look like to start unraveling some of those concepts in trying to move away from its influence?

Betty Lyons 07:01

I also think that, you know, to kind of stop the influence or to water it down, you know, first, we have to ask the Vatican to take necessary steps to acknowledge the harm that they caused with this document. Acknowledge that it's so embedded in the framework of law? And what steps are they going to take to try to? You know, I don't always like these words, like remediation or reconciliation, because basically what that document did was genocide, and you can't reconcile 500 years in genocide, you just can't. So how do you how do you start to try to make a change, for healing to occur? And then real growth come from that. Part of that was our efforts in getting the Vatican to rescind and not just repudiate. But to resend that document? And now we're starting to have those conversations and discussions, where before it was, oh, no, this was just a document, you know, it had no, that's not what it was intended for. And there's no way that it could have application in today's society. But of course, we know that it does. And I really believe that that is why we are not seen as human equal to all other humans.

Tanner Randall 08:27

Did they end up rescinding the documents,

Betty Lyons 08:30

Not it's it was more of an acknowledgment, they're starting. They're beginning the process of acknowledging, and now for us, it's about the rescinding part. And we're, you know, they're talking about maybe having these discussions with Vatican officials and Indigenous people to try to unravel that and figure that out, how are we going to work together to try to bring about a real healing. And this pope in particular, Francis is very different than all of his predecessors, that I personally am 53 years old, that, you know, that I've ever seen. Very, very different, his manner, his way. And everything that he says what he says and how he's conducting himself, it's congruent, right? Like, what he's saying and what he's doing. It's all the same. It's not, there's no separation and that, and his influence is enormous, because he has this beautiful spirit about him and heart and, and wanting to do the right thing. But we're not naive. And we're certainly not ignorant or stupid about the fact that there are people in the Vatican that never want to see this change. Because when it comes down to it, you're talking about money. You're talking about land, you know, and really, it's the basis of white nationalism in the United States and around the world.

Tanner Randall 09:58

So to start to go towards this process of acknowledging the Doctrine of Discovery as terrible within the Catholic Church, it almost seems like it would undermine their own position and say, Oh, over the last 500 years, our action has been based off of something that's morally wrong, which is quite complicated, I think and would challenge a lot of people's beliefs, which is hard to come to terms with, but in our understanding of kind of the doctrine of discovery, and obviously, its Catholic origins, once or if we do eventually, with the, or if we do with the Catholic Church, rescind the document, and we start to then look at more isolated scenarios like the United States. What could we expect? As far as taking those concepts out of the United States Government framework? What does that environment look like?

Betty Lyons 11:00

Yeah, I think, you know, you're talking more about us being seen as equal to all human beings, right? Like, it would start those kinds of conversations there, I believe that there would be a shift. Taking it out of case law is going to be difficult. But I believe that, once that happens, we'll be able to create precedent, by using those as an as a legal argument. I mean, if the legal argument can start out in the framework of the doctrine of discovery, then once it's rescinded, that also should right be allowed to be used to unravel it as well. And I also think that, you know, thinking about the Catholic Church, and its in its history, they have a very troubled history. And now I think is the time for them to kind of clean that up. I mean, if you're talking about everything is supposed to be made based on a value system and a moral structure, then, this is the time that you have to understand and come to the realization and acknowledge all of the harms that you've caused all the things that you've done, if you ever have any hope in changing that. But what I wanted to say earlier was that the Pope is putting himself in a situation of physical harm, I'm not going to sugarcoat it, by him coming out publicly and saying, this needs to be addressed, we need to have that conversation. And I believe that he had people that were insulating him from the facts. I know that to be true, right. And then when he found out about the depth of all of this, it really bothered His heart and His Spirit. And I believe that's what the difference was, and how to change that. Now he can affect all of those people that he that follow him, that love him, that listen to His word. For you know, for Catholics, that position is the closest to God, right? It's that conduit. And so he is a really good human being. And so we're just hoping that whoever, for as long as he lives that that he can do this work, and that his predecessor, whoever that might be, will also be able to be this same type of person right.

Tanner Randall 13:30

Now, I've been very impressed by some of the work that Pope Francis has been doing. I remember when he was originally selected, that people were like, Oh, he may be a different kind of Pope. And it's been extremely interesting to see those actions come to fruition. And honestly, a little bit comforting, because I think that we're in an age where people are starting to come to terms with some of the atrocities, the larger institutions through the development of colonization, a lot of the terrible things that they did, they're coming to terms with that. And so I have a little bit of a question as far as the doctrine of discovery, and kind of, it's traditionally used as something for land grab, grabbing demeaning the status of others, and empire building. In modern discourse, there seem to be a lot of things that are missing due to the doctrine of discovery, and a lot of principles that are implemented in government that have roots in the Doctrine of Discovery reading. Last night when we were at the presentation of Joe day, he was talking about tracing back all the case law to Johnson Macintosh in federal Indian law. So that's a long way of getting to my question of how specific we get with the on understanding of the doctrine of discovery influence, particularly in like the United States government, and social structure.

Betty Lyons 15:06

I think that what JoeDe Goudy presented last night was amazing, especially in particular, all of the case law that has set precedent over hundreds of years. Right, what solidified and strengthened the doctrine of discovery and its effects. And, you know, as you were talking right away, I was thinking about our sisters and brothers in Central and South America, and how they still live under this oppression, and protecting their lands, territories and resources. You know, I think what people don't understand is that we, for Indigenous people, for us, we everything is connected to the natural world, you can't separate yourself. And what that doctrine did. It was like severing that tie. It was about domination, it was about

subduing it was about, they talked about the word stewardship. That's not what we're talking about, as Indigenous people, we're talking about a fundamental relationship. That is like world and life changing. All of that was put into place by that doctrine. And if we go back and go into each one of those cases, right, if it was to be rescinded, we can start pulling those threads out of that fabric that they've woven so tightly together, that now things could grow and be different. Justice could finally be served for all other living beings, because we see them as relatives, not just merely resources. And so when you're talking about this case, law, it unfortunately didn't just affect the United States, Canada, it's embedded in Canada's, but they finally used it for good and 2014. And I apologize, because I can't remember the case right now. But it was it was turned. And so the Government of Canada finally acknowledged basically, that this this document is not one that should be used. And again, it goes back to this separation of church and state, which we know is completely embedded in everything in the United States. And all other of these are what I call Empire countries, right? Countries that feel that they have that right of domination over lands, territories, resources, and people.

Tanner Randall 17:40

That's one of my most frustrating things to me when I think about it, is the fact that we have so much material dedicated to the separation of church and state. And we still have documents like the Doctrine of Discovery, embedded in the United States Constitution, or in the United States case framework, as well, as you see a lot and God we trust. And even that is something that shouldn't be present according to our own standards. And so I think that it's really interesting that you mentioned kind of this symbiotic relationship with the environment. And one of the ramifications of the doctrine of discovery that I come to terms with a lot is that it created a hierarchy. And it basically destroyed the idea of having an equitable relationship with your environment. So I think that's a extremely important point that you brought up. And even again, like you said, was stewardship that is somebody overseeing the land, it's not living in symbiosis. And so thank you for bringing that up.

Betty Lyons 18:48

Yeah, thank you. It's, it's something that I think people, especially right now, my uncle Oren always says, this is about a value system change that's needed for our mutual survival. And until we get it and have that understanding, we're in trouble. We're in serious trouble right now, the climate crisis is real. And we need to start taking steps to not only acknowledge it, but now what are we going to do about it? We've created this disaster in this mess. How do we change that? And how do you start to change your mindset that, you see I'm looking at plants in this room, and seeing that there are relatives, they have feelings, they can hear us? They have energy and vibration, they're living, you know, just being having living in that gratitude all the time. It's so important, even what you refer to in In God We Trust, right? I was thinking about the dollar bill, and how many symbolisms they talk from the holiness Shawnee, as you know, maybe you don't know. The Haudenosaunee basically, helped the forming of the United States and the founding quote unquote Fathers of the United States, when they were creating the Constitution and their documents, and gave them the platform for democracy, because we have the three, the three houses of government, right. But what they left out was that it's not about power. It's not about control. It's not about money. It's about service. It's about that constant giving back to every community member. Making space for all the living beings, men and women are equal, where I come from, there isn't this system of hierarchy, and our leadership, although we say leadership, right? It's really *hoyane* is a word that we use for what you would consider chief, but it's he has a good mind. It's

all based on qualities of character, you have to be a good person, kind, caring, compassionate, loving, fight for your family, fight for your community, your nation, all of that, right. And it's all in those symbolisms that are on that dollar bill, the eagle that is supposed to let us know when there is trouble ahead. On top of, you know, the Great Tree of Peace for us. The arrows that are together, we had five our Peacemaker said, you put five arrows together, you can't break them, because they're strengthen that unity. That was our five original nations. But if you know, one, one can snap very, really quickly, you put five together. And so that was the first 13 colonies that you see, with the eagle clutching those 13 arrows, again, it comes back to our influence on democracy. But what did they leave out? They left out the rights and roles of women. You can't have How could you possibly call yourself a democracy, when you sit for how many years till 1920 They thought that they could dominate own and control women? What I mean, it's so absurd. And you left out the rights and roles of all other living beings. We have the obligation and moral responsibility to speak for all other things that can't speak for themselves. I have to speak for the fish, the water, the trees, the medicine plants, we need those, they don't need us.

Tanner Randall 22:29

Well, it's extremely powerful. And I didn't know a lot of the origins of the dollar bill being in Haudenosaunee, or government structure coming from their culture. But I think it's extremely interesting that you talked about like checks and balances, I remember through school growing up and being like, this is a revolutionary system. People are, you know, watching out making sure you know, power is not unevenly distributed, and all of these things, but now, I'm kind of curious of like, why wasn't I taught that that was an Indigenous system. I mean, it makes so much sense. It's living in an equitable environment to where people don't have too much power and are trying to create a system to where they do different things, but in a way to raise up the entire group. Okay, building off of kind of what we've been talking about of land grabbing, and how the Doctrine of Discovery has influenced what you know, the United States looks like today. I think it's interesting in modern case law, what you see in the Dakotas, and across the northern United States, with pipelines and different campaigns of that sort, what it would be like for the United States to have one of their spiritual places or places of importance to be taken like an Indigenous person, that's something we can't imagine. So, could you connect those two please? Yes.

Betty Lyons 24:04

Johnson, Johnson V. McIntosh, started this land grab and the desecration I would say, a decimation of sacred sites are sacred sites. And it's hard for me to try to relate this to you, I'm going to do the best I can, you know, sites that are important to quote unquote, Americans, right, regular day Americans, thinking about, you know, where the Constitution was written, that may be an important it is so above all of that, for us. A sacred site is something where maybe our Peacemaker came. It's like the shores of Onondaga Lake. For example. It's oak flats. It's, you know, the Black Hills. It's Standing Rock Protecting those things, it would be the equivalent, I'm trying to relate it, even though for us, it's even more than that. But if somebody were to come in and desecrate a church, or a synagogue, or any other place that is so important, it is where our spiritual connection starts. And doesn't end, it's that is the power of those places. And for them to then because of Johnson V. McIntosh, because of the doctrine of discovery, they now have become possessions. It's now where you can have title over it, where you can own it, where it's only worth the resources that are in the land itself, you know, to turn it over and take out all the natural resources to contaminate it. Where did that idea come from? It comes from that doctrine. It

comes from Johnson V. McIntosh, that we can own control, ruin, desecrate anything, we feel that we need to make us happy, comfortable, any of those things, I find it so unbelievable, because when you're thinking about common sense, even, do you contaminate the water you drink? I really say this humans are the only people that think that they can contaminate water and still drink it, and that there's still more coming? Have you lost your minds? I mean, or to contaminate the land and still think you can grow something on it, and it's going to be healthy and good for you, or to destroy it. This is our mother. I don't know how else to say it. How do you treat your mother? Take a look in the mirror. Really, every time you take a drink of water? Who do you give thanks for that for? You take it for granted, you think it's always going to, it's always going to be running out of that facet. No, no, not without gratitude, not without love, respect, all of those things, that that come that were meant to destroy it from that doctrine, to Johnson V. Macintosh to today. It's a living and breathing thing. It's like the epitome of evilness, all of those documents, and what it did and what it caused, and what we have to fight to, to try to protect it. We're not just trying to protect it for us. We're trying to help protect it for everyone here, because you are our visitors, you have come into our territory. And we need to take care of you and protect you from yourselves if we have to. That's the bottom line.

Tanner Randall 27:55

Doctrine of Discovery has been covert for a long time. And there seems to be some reason to why it's not being brought to light. There are a lot of economic interests within its principles. And I think that there are certainly a lot of institutions that benefit off of implementing its ideas. So can you speak to the importance of understanding why the Indigenous need to address the Doctrine of Discovery is not about the economic gain. It's about healing and returning to this process of being conscious of our place in this overall system on Turtle Island.

Betty Lyons 28:43

Yes. So for Indigenous people were visitors here. We need to leave the land and every all the living beings that inhabit Mother Earth, better for our next seven generations. We're not looking for financial gain. We're not looking to commodify to sell everything that is under our feet. That's not who we are. We're not looking to kick people off their land, because what has happened is this fear mongering has come in to politics to the government. They want to make everyone afraid that they're going to lose their social and economic standing by acknowledging this doctrine of discovery, because by acknowledging it, then you have to do something about it. Right? That That, to me is kind of the thing that I struggle with the most and getting people to understand. It's again goes back to that symbiotic relationship. It's reciprocal. It's a reciprocal relationship. It also goes back to the quote unquote, migrant issue that they always talk about their Indigenous As people too, and they're usually running to the borders, and the borders of the quote unquote, United States, of Turtle Island, we're all relatives. They're all Indigenous people. They're just trying to protect the lands, territories and resources that they're living on. And people are so afraid of not having power and control that has been put into place by the Doctrine of Discovery, Johnson V. McIntosh, that hierarchical system that I, the average white American, you know, Christian, I have power and control over you. I'm above you. I don't see you as an equal, we can dominate you. That's what is so embedded now into the framework of the United States. How do you gift this value system? I don't know. All I know is that we're not trying to kick people off their land. We're trying to live in relationship with you with one another. We're family. We all bleed. We can exchange blood, as my uncle says, It doesn't get any closer than that. What are we doing? And why is

it always I look at different religious sects, I guess, for lack of a better term. And you know, you have Protestants, Catholics, Methodists, Baptists, all of these different, you know, types of Christianity. Why can't you come to one mind on one? I don't understand it. If you believe in Jesus Christ, right, and you believe that all of his teachings are what you're following? Why is it all different? And why do you pick and choose who you're going to love? And who you're going to be kind to? Who are you going to take in, from what I know about Jesus Christ, he wouldn't have picked would be picky and choosey about who he was going to help love care for. Give water to be kind give a place to sleep to. That's who we are as Indigenous people as well. So I feel pretty close to when I hear his teachings, right. When I hear about all the things you said, yeah. So why, Where's the disconnect? Where's the disconnect? The disconnect came from that doctrine came from Johnson V. Macintosh came from the framework of the United States. What when did it turn around to be about me, and what I need my needs to be met. It's about we, we're not going to exist without one another and all other living beings. There's power in that. There's love in that. There's compassion in that. Let's get to it. Because of colonization, we struggle we have real struggles. So we're not living in a utopia. I want you to understand that. However, I also want you to know that here at Onondaga, you're on the lands of the Onondaga Nation, not even a mile from here as Onondaga lake you can see it from out of one of these windows. That is where a peacemaker came and brought that message. That's the birthplace of democracy right there, right here on the shores of the lake. Ours is not a religion. It's a way of being. It's, it's, it's something that you can't separate. You know, it's not about believing in something else that's, you know, hierarchical power or person, giving a person that power, right. It's about living in gratitude, having gratitude for all living beings are all things that they provide for us. And I don't think that it's not a coincidence, or I would say that it's I don't believe that I believe that it was. It happened for a reason that Onondaga Lake is still one of the most contaminated lakes in the world, because of the power of that lake, because of the power of where our Peacemaker came, including bringing us the game of lacrosse. And so all of those things I want you to understand, happened right in this powerful area. Right? It's, it's kind of an amazing place. Really.

Tanner Randall 34:36

No, it's certainly powerful. And we can tell that over this weekend during the conference, excited,

Betty Lyons 34:40

I'm so glad to have everyone here. You know, and I guess Lastly, I would say that, you know, peace cannot become can't come without being in proper relationship with the natural world. You know, that's something that our Tadodaho, who happens to be my partner is always saying You have to have that proper relationship, to have peace to have scanner. So, we're so grateful that you're here. We welcome you here and we look forward to this wonderful couple of days of conference. And thank you for speaking with us today. Thank you.

Tanner Randall 35:23

Thanks for listening to this episode of the doctrine of Christian discovery recorded at the 2023 Religious Origins of White Supremacy Conference at Syracuse University in New York. This podcast is produced in collaboration between Good Faith Media, Syracuse University and the Indigenous Values Initiative. I'm Tanner Randall for Good Faith Media. Our executive producers are Mitch Randall of Good Faith Media Philip P. Arnold and Sandy Bigtree of the Indigenous values initiative and Adam DJ Brett

Doctrine of Christian Discovery Podcast: Episode 1
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